

City Contract # _____

MPO Contract # 187445

PROFESSIONAL SERVICES AGREEMENT
for the
Parsley Boulevard Corridor Plan

PREAMBLE

THIS AGREEMENT is made and entered into this ____ day of _____, 2018, by and between the City of Cheyenne, Cheyenne Metropolitan Planning Organization, hereinafter referred to as the “MPO,” and AVI p.c., hereinafter referred to as “Consultant.” The City of Cheyenne is acting as the agent of the MPO for the contract administration and as the MPO’s Fiscal Manager in accordance with Contract #6111.

AGREEMENT

In consideration of the mutual covenants and obligations herein expressed, it is agreed by and between the parties as follows:

1. SCOPE OF WORK

The Consultant agrees to provide services as described for the above-mentioned project, in accordance with the Scope of Work attached hereto as Exhibit A, incorporated by reference and expressly made a part hereof.

2. TIME OF PERFORMANCE

The work included in this Scope of Work will be completed in accordance with the project schedule attached hereto as Exhibit B, incorporated by reference and expressly made a part hereof. Any extensions of the time limit set forth in the Scope of Work shall be agreed upon in writing between the parties.

3. CONSULTANT RESPONSIBILITY

The Consultant shall be responsible for the professional quality, technical accuracy, timely completion of drawings and other services rendered by the Consultant and its sub-consultants and shall, without additional compensation, promptly remedy and correct any errors, omissions, or other deficiencies, except to the extent that such errors, omissions or other deficiencies arise from the digital data created by *Cheyenne/Laramie County Cooperative Geographic Information System (CLCCGIS)*.

In providing services under this Agreement, the Consultant shall perform in a manner consistent with that degree of care and skill ordinarily exercised by members of the same profession currently practicing under similar circumstances at the same time and in the same or similar locality. Upon notice to the Consultant and by mutual agreement between the parties, the Consultant will, without additional compensation, correct those services not

meeting such a standard.

4. GIS MAPS AND DIGITAL DATA

If the Consultant uses any maps, coverages, images, or other digital data created by the CLCCGIS for the project specified in Exhibit A, the Consultant agrees to return or destroy that information once the project is complete. Consultant agrees not to reuse or sell the GIS maps or data, which were provided as a professional courtesy and to minimize the cost of the project.

5. GIS DATA LIMITATION AND DISCLAIMED LIABILITY

GIS data is collected primarily for use by the City of Cheyenne and Laramie County. Any unauthorized use of the data is at the risk of the user.

6. COMPLIANCE WITH LAWS

The Parties agree that they will perform their obligations as provided in this Agreement in accordance with all applicable laws and ordinances.

7. DRUG-FREE WORKPLACE

In compliance with the Drug Free Work Place Act of November 1988, the City of Cheyenne has established an Alcohol and Controlled Substance Policy that pertains to alcohol and drug usage by City employees. All architects, engineers and other consultants under contract with City of Cheyenne, and their employees and sub-consultants, are required to comply with the provisions of the City's Alcohol and Controlled Substance Policy for drug and/or alcohol usage on City property or other sites occupied by the Consultant while performing the duties and responsibilities of the Agreement. It is the responsibility of the Consultant to familiarize themselves with the requirements of this policy and to inform all their employees and sub-consultants of the requirements and ensure their compliance. If the Consultant, their employees or sub-consultants are found in violation of this policy, the Agreement may be terminated.

8. INDEMNIFICATION/HOLD HARMLESS

The Consultant agrees to indemnify, hold harmless and defend the City from and against any and all liabilities, claims, penalties, forfeitures and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result of death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations or orders to the extent caused by (1) the Consultant's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error or omission by the Consultant, or its employees or sub-consultants in the performance of this Agreement. The Consultant acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.

9. INSURANCE REQUIREMENTS

The Consultant must provide proof of the following insurance coverages:

Commercial General Liability Insurance

For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

Business Automobile Insurance

Including owned, non-owned and hired vehicles with minimum limits for bodily injury and property damage of \$1,000,000 per accident for the entire term of the Agreement.

Workers' Compensation

Workers' compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. Consultant shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

Professional Liability Insurance

The Consultant shall provide proof of professional liability insurance or errors and omissions liability insurance in an amount not less than \$500,000 to protect the City from any and all claims arising from the Consultant's negligence in the performance of duties under this Agreement. The City prefers that this liability insurance coverage be provided pursuant to an "occurrence" policy.

If this coverage is provided pursuant to a "claims made" policy:

- a. Consultant shall, concurrently with the execution of this Agreement, provide the City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Consultant begins the provision of services under this Agreement;
- b. In the event the Consultant's services extend into a future policy period, the Consultant shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Consultant will provide services under this Agreement;
- c. Consultant shall maintain said "claims made" coverage for a period of five (5) years following the last date that Consultant has provided services under this Agreement; and
- d. In the event the Consultant or the insurer terminates "claims made" coverage prior to the expiration of the periods provided in subparagraphs a., b., or c. of this paragraph, the Consultant shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period ("tail coverage") which shall be in effect for a period of time not less than five (5) years following the last date that Consultant has provided services under this Agreement.

Additional Insurance Information

The Consultant shall name the City of Cheyenne and the MPO as **an Additional Insured** by endorsement on its insurance policies, with the exception of workers' compensation and professional liability insurance and shall provide the City with a copy of the endorsements.

Consultant shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Consultant to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation or substantive change of any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

If requested by the City, the Consultant shall provide the City with copies of insurance policies and/or policy endorsements listing the City of Cheyenne as an additional insured. The City's failure to request or review such policies, endorsements, or certificates shall not affect the City's rights or Consultant's obligation hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A. M. Best rating of A- (excellent).

10. MINORITY AND DISADVANTAGED BUSINESS ENTERPRISES 49 C.F.R. Part 26
All parties to this Agreement assure that no person will be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this Agreement on the grounds of age, race, color, disability, national origin or sex.
11. COMPENSATION
In consideration of the services to be performed pursuant to this Agreement, the Consultant will bill the MPO and the MPO agrees to pay Consultant a total amount of seventy-eight thousand, four hundred and nineteen Dollars (\$78,419.00), in accordance with the fee schedule given in Exhibit C, which is attached to this Agreement, incorporated by reference and expressly made a part hereof. The amounts of all such payments shall be based upon the Consultant's progress, verified by the MPO, in completing the work as described in Exhibits A, B, and C. Final payment shall be made following acceptance of the work by the MPO. Original quality reproductions of all designs, plans, reports, specifications, drawings and other services rendered by the Consultant shall become the sole property of the MPO and shall be delivered to the MPO, immediately upon their preparation to the extent the MPO has satisfied its payment obligations to the Consultant. A portion of the payment may be held until any claims are resolved.

12. MPO REPRESENTATIVE

Prior to commencement of work, the MPO will designate in writing, an MPO Representative who shall make, within the scope of his/her authority, all necessary decisions regarding the project. All requests for contract interpretations, field orders, contract modifications, change orders, and other clarification or instruction shall be directed to the MPO Representative.

13. MONTHLY REPORT

With every monthly billing, Consultant shall provide the MPO Representative with a written statement of the status of the work with respect to the Scope of Works, time sheets, and work schedule. Failure to provide the required monthly report will delay processing of any payment request until the report is submitted.

14. INDEPENDENT CONSULTANT

The Consultant shall function as an independent consultant for the purposes of this Agreement. The Consultant shall assume sole responsibility for any debts or liabilities that may be incurred by the Consultant in fulfilling the terms of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Consultant or its agents or employees to act as an agent or representative of or on behalf of the MPO or to incur any obligation of any kind on the behalf of the MPO.

15. TAXES

The Consultant agrees to pay all valid taxes, excises, license fees, permit fees, bills, debts and obligations incurred by in connection with its operations under this Agreement.

16. APPROVAL OF PLANS

The MPO's approval of drawings, designs, plans, specifications, reports, and incidental work or materials shall not in any way relieve the Consultant of responsibility for the technical accuracy of the work. The MPO's approval or acceptance of, or payment for, any of the services shall not be construed to operate as a waiver of any of the MPO's rights under this Agreement or any of its legal rights under statute or common law arising out of the performance of this Agreement.

17. DEFAULT

Each and every term and condition in this Agreement shall be deemed to be a material element of the Agreement. In the event either party should fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.

18. REMEDIES

In the event a party has been declared in default, such defaulting party shall be allowed a period of fifteen (15) days within which to cure the default. In the event the default remains uncorrected, the non-defaulting party declaring default may elect to:

- a. Terminate the Agreement and seek damages, which damages shall not exceed the contract amount; or

- b. Treat the agreement as continuing and require specific performance.

19. TERMINATION BY MPO

The MPO Representative may, without cause, by written notice within ten (10) days to the Consultant, terminate this Agreement in whole or in part at any time, for the MPO's convenience. Upon receipt of such notice, the Consultant shall:

- a. Discontinue all services affected; and
- b. Deliver to the MPO Representative within five (5) days all data, drawings, specifications, reports, estimates, summaries, and such other information and materials as may have been accumulated by the Consultant in performing this Agreement, whether completed or in process.
- c. In the event of termination for convenience, the MPO will pay the Consultant for accepted work done and expenses incurred to the date of termination. Such acceptance shall not be unreasonably withheld.

20. ADDITIONAL REMEDIES

In the event the Consultant fails to strictly perform in accordance with this Agreement, the MPO may elect to correct the deficiencies and charge the Consultant. In the event of default of any of the conditions by either party which shall require the party not in default to commence legal or equitable action against the defaulting party each party shall bear its own costs and expenses, including without limitation, attorney's fees.

21. GOVERNING LAW, JURISDICTION AND VENUE

The construction, interpretation and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

22. GOVERNMENTAL IMMUNITY

The State of Wyoming, the Wyoming Department of Transportation (WYDOT), the City of Cheyenne, and Laramie County, along with their officials and employees, do not waive their governmental or sovereign immunity by entering into this Agreement, and the MPO does not waive governmental immunity, except to the extent necessary for the parties to pursue a contract action to clarify or enforce the written terms of the agreement, and each specifically retains all immunities and defenses available to them as sovereigns or governmental entities pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other state law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be constructed as a waiver of governmental or sovereign immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to governmental or sovereign immunity shall be construed in favor of governmental or sovereign immunity. The State of Wyoming, WYDOT, the City of Cheyenne, Laramie County, and the MPO reserve all immunities and

defenses available under the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101, *et. seq.*

23. ENVIRONMENTAL POLICY ACTS

The Consultant agrees all activities under this Agreement will comply with the Clean Air Act, the Clean Water Act, the National Environmental Policy Act, and other related provisions of federal environmental protection laws, rules or regulations.

24. HUMAN TRAFFICKING

As required by 22 U.S.C. § 7104(g) and 2 C.F.R. Part 175, this Agreement may be terminated without penalty if a private entity that receives funds under this Agreement:

- a. Engages in severe forms of trafficking in persons during the period of time that the award is in effect;
- b. Procures a commercial sex act during the period of time that the award is in effect;
or
- c. Uses forced labor in the performance of the award or sub-awards under the award.

25. KICKBACKS

The Consultant certifies and warrants that no gratuities, kickbacks, or contingency fees were paid in connection with this Agreement, nor were any fees, commissions, gifts, or other considerations made contingent upon the award of this Agreement. If the Consultant breaches or violates this warranty, Cheyenne MPO may, at its discretion, terminate this Agreement without liability to Cheyenne MPO, or deduct from the agreed upon price or consideration, or otherwise recover, the full amount of any commission, percentage, brokerage, or contingency fee.

26. LIMITATIONS ON LOBBYING ACTIVITIES

By signing this Agreement, the Consultant certifies and agrees that, in accordance with Public Law 101-121, payments made from a federal grant shall not be utilized by the Consultant or its sub-consultants in connection with lobbying Congressmen, or any other federal agency in connection with the award of a federal grant, contract, cooperative agreement, or loan.

27. MONITORING ACTIVITIES

The Cheyenne MPO shall have the right to monitor all activities related to this Agreement that are performed by the Consultant or its sub-consultants. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of the related work.

28. NON-DISCRIMINATION

The Consultant shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans With Disabilities Act (ADA), 42 U.S.C. § 12101, *et seq.*, the Age Discrimination Act of 1975, and any properly promulgated rules and regulations thereto and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy or qualifying disability in connection with the performance under this Agreement.

29. PROFESSIONAL REGISTRATION

The Consultant shall endorse, as required by law, plans and reports prepared under this Agreement, and shall affix thereto his or her seal of professional registration, showing that he or she is licensed to practice in the State of Wyoming.

30. PUBLICITY

Any publicity given to the program or services provided herein, including, but not limited to, notices, information, pamphlets, press releases, research, reports, signs, and similar public notices prepared by or for the Consultant and related to the services and work to be performed under this Agreement, shall identify Cheyenne MPO, WYDOT and/or the Federal Highway Administration as the sponsoring agency and shall not be released without prior written approval of Cheyenne MPO and WYDOT.

31. SUSPENSION AND DEBARMENT

By signing this Agreement, the Consultant certifies that neither it nor its principals are presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from participation in this transaction nor from federal financial or non-financial assistance, nor are any of the participants involved in the execution of this Agreement suspended, debarred, or voluntarily excluded by any federal department or agency in accordance with Executive Order 12549 (Debarment and Suspension) and 44 C.F.R. Part 17, or are on the debarred vendors list at www.epls.gov. Further, the Consultant agrees to notify Cheyenne MPO by certified mail should it or any of its agents become debarred, suspended, or voluntarily excluded during the term of this Agreement.

32. NO GOVERNMENT OBLIGATION TO THIRD PARTIES

No Obligation by the Federal Government.

- a. The Consultant acknowledges and agrees that, notwithstanding any concurrence by the Federal Government in or approval of the solicitation or award of the underlying contract, absent the express written consent by the Federal Government, the Federal Government is not a party to this Agreement and shall not be subject to any obligations or liabilities to the Consultant, or any other party (whether or not a party to that contract) pertaining to any matter resulting from the underlying contract.
- b. The Consultant agrees to include the above clause in each subcontract financed in whole or in part with Federal assistance provided by the Federal Transit

Administration (FTA). It is further agreed that the clause shall not be modified, except to identify the sub-consultant who will be subject to its provisions.

33. PROGRAM FRAUD AND FALSE OR FRAUDULENT STATEMENTS AND RELATED ACTS

- a. The Consultant acknowledges that the provisions of the Program Fraud Civil Remedies Act of 1986, as amended, 31 U.S.C. § 3801, *et seq.*, and U.S. DOT regulations, “Program Fraud Civil Remedies,” 49 C.F.R. Part 31, apply to its actions pertaining to this Project. Upon execution of the underlying contract, the Consultant certifies or affirms the truthfulness and accuracy of any statement it has made, it makes, it may make, or causes to be made, pertaining to the underlying contract or the FTA assisted project for which this contract work is being performed. In addition to other penalties that may be applicable, the Consultant further acknowledges that if it makes, or causes to be made, a false, fictitious, or fraudulent claim, statement, submission, or certification, the Federal Government reserves the right to impose the penalties of the Program Fraud Civil Remedies Act of 1986 on the Consultant to the extent the Federal Government deems appropriate.
- b. The Consultant also acknowledges that if it makes, or causes to be made, a false, fictitious, or fraudulent claim, statement, submission, or certification to the Federal Government under a contract connected with a project that is financed in whole or in part with Federal assistance originally awarded by FTA under the authority of 49 U.S.C. § 5307, the Government reserves the right to impose the penalties of 18 U.S.C. § 1001 and 49 U.S.C. § 5307(n)(1) on the Consultant, to the extent the Federal Government deems appropriate.
- c. The Consultant agrees to include the above two clauses in each sub-contract financed in whole or in part with Federal assistance provided by FTA. It is further agreed that the clauses shall not be modified, except to identify the sub-consultant who will be subject to the provisions.

34. FEDERAL CHANGES 49 C.F.R. Part 18

Consultant shall at all times comply with all applicable FTA regulations, policies, procedures and directives, including without limitation those listed directly or by reference in the Agreement (Form FTA MA (18) dated October 2011) between consultant and FTA, as they may be amended or promulgated from time to time during the term of this Agreement. Consultant’s failure to so comply shall constitute a material breach of this Agreement.

35. INCORPORATION OF FEDERAL TRANSIT ADMINISTRATION (FTA) TERMS
FTA Circular 4220.1F

Applicability: The incorporation of FTA terms applies to all contracts.

The preceding provisions include, in part, certain Standard Terms and Conditions required by DOT, whether or not expressly set forth in the preceding contract provisions. All contractual provisions required by DOT, as set forth in FTA Circular 4220.1F, are hereby incorporated by reference. Anything to the contrary herein notwithstanding, all FTA

mandated terms shall be deemed to control in the event of a conflict with other provisions contained in this Agreement. The Consultant shall not perform any act, fail to perform any act, or refuse to comply with any City of Cheyenne requests which would cause City of Cheyenne to be in violation of the FTA terms and conditions.

36. LOBBYING 31 U.S.C. § 1352 – 49 C.F.R. Part 19 - 49 C.F.R. Part 20
Byrd Anti-Lobbying Amendment, 31 U.S.C. § 1352, as amended by the Lobbying Disclosure Act of 1995, 2 U.S.C. § 1601, *et seq.* Consultants who apply or bid for an award of \$100,000 or more shall file the certification required by 49 C.F.R. Part 20, “New Restrictions on Lobbying”. Each tier certifies to the tier above that it will not and has not used Federal appropriated funds to pay a person or organization for influencing or attempting to influence an officer or employee of any agency, a member of Congress, officer or employee of Congress, or an employee of a member of Congress in connection with obtaining any Federal contract, grant or any other award covered by 31 U.S.C. § 1352. Each tier shall also disclose the name of any registrant under the Lobbying Disclosure Act of 1995 who has made lobbying contacts on its behalf with non-Federal funds with respect to that Federal contract, grant or award covered by 31 U.S.C. § 1352. Such disclosures are forwarded from tier to tier up to the recipient.
37. ADA ACCESSIBILITY 42 U.S.C. § 12101, *et seq.*
Applicability: Facilities construction or renovation contracts.
Facilities to be used in public transportation service must comply with 42 U.S.C. § 12101, *et seq.*, and DOT regulations, “Transportation Services for Individuals with Disabilities (ADA),” 49 C.F.R. Part 37; and Joint ATBCB/DOT regulations, “Americans with Disabilities (ADA) Accessibility Specifications for Transportation Vehicles,” 36 C.F.R. Part 1192 and 49 C.F.R. Part 38. Notably, DOT incorporated reference the ATBCB’s “Americans with Disabilities Act Accessibility Guidelines” (ADAAG), revised July 2004, which include accessibility guidelines for buildings and facilities, and are incorporated into Appendix A to 49 C.F.R. Part 37. DOT also added specific provisions to Appendix A modifying the ADAAG, with the result that buildings and facilities must comply with both the ADAAG amendments thereto in Appendix A to 49 C.F.R. Part 37.
38. PRIVACY ACT 5 U.S.C. § 552
Applicability: The Federal Privacy Act requirements flow down to each third-party Consultant and their contracts at every tier.
The following requirements apply to the Consultant and its employees that administer any system of records on behalf of the Federal Government under any contract:
- a. The Consultant agrees to comply with, and assures the compliance of its employees with, the information restrictions and other applicable requirements of the Privacy Act of 1974, 5 U.S.C. § 552a. Among other things, the Consultant agrees to obtain the express consent of the Federal Government before the Consultant or its employees operate a system of records on behalf of the Federal Government. The Consultant understands that the requirements of the Privacy Act, including the civil and criminal penalties for violations of that Act, apply to those individuals involved, and that failure

to comply with the terms of the privacy Act may result in termination of the underlying contract.

- b. The Consultant also agrees to include these requirements in each sub-contract to administer any system of records on behalf of the Federal Government financed in whole or in part with Federal assistance provided by FTA.

39. MISCELLANEOUS TERMS REQUIRED BY WYOMING DEPARTMENT OF TRANSPORTATION

a. Special Provisions

- (i) Conflict of Interest. The subrecipient must disclose in writing any potential conflict of interest to WYDOT including financial or other personal interests.
- (ii) Mandatory Disclosures. The subrecipient must disclose, in a timely manner, in writing to WYDOT all violations of Federal criminal law involving fraud, bribery, or gratuity violations potentially affecting this award. Failure to make required disclosures can result in remedies for noncompliance including suspension or debarment.

b. General Provisions

- (i) Amendments. Either party may request changes in this Agreement. Any changes, modifications, revisions or amendments to this Agreement which are mutually agreed upon by and between the parties to this Agreement shall be incorporated by written instrument, executed and signed by all parties to this Agreement.
- (ii) Assumption of Risk. The City shall assume the risk of any loss of state or federal funding, either administrative or program dollars, due to its failure to comply with state or federal requirements. WYDOT will notify the City of any state or federal determination of noncompliance.
- (iii) Availability of Funds. Each payment obligation of WYDOT is conditioned upon the availability of government funds which are appropriated or allocated for the payment of this obligation. If funds are not allocated and available for the continuance of the services performed by the City, this Agreement may be terminated by WYDOT at the end of the period for which the funds are available. WYDOT will notify the City at the earliest possible time of the services which will or may be affected by a shortage of funds. No penalty shall accrue to WYDOT in the event this provision is exercised, and WYDOT will not be obligated or liable for any future payments due or for any damages as a result of termination under this section. This provision shall not be construed to permit WYDOT to

terminate this Agreement in order to acquire similar services from another party.

- (iv) Notices. All notices arising out of, or from, the provisions of this Agreement shall be in writing and given to the parties at the address provided under this Agreement, either delivered by hand or certified mail.
- (v) Prior Approval. This Agreement shall not be binding upon either party, no services shall be performed under the terms of this Agreement, and the Wyoming State Auditor shall not draw warrants for payment on this Agreement until this Agreement has been reduced to writing, approved as to form by the Office of the Attorney General, and approved by the Governor of the State of Wyoming, or his designee, if required by Wyo. Stat. §9-2-1016(b)(iv).
- (vi) Severability. Should any portion of this Agreement be judicially determined to be illegal or unenforceable, the remainder of this Agreement shall continue in full force and effect, and either party may renegotiate the terms affected by the severance.
- (vii) Assignment/Agreement Not Used as Collateral. Neither party shall assign nor otherwise transfer any of the rights or delegate any of the duties set forth in this Agreement without the prior written consent of the other party. The City shall not use this Agreement, or any portion thereof, for collateral for any financial obligation without the prior written permission of WYDOT.

40. ENTIRETY OF AGREEMENT

This Agreement consisting of 13 pages, and Exhibits A, B, and C consisting of 9, 2, and 1 pages respectively, and submitted proposal with negotiated changes, contains the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter. Time is of the essence hereof. Any timing extension shall be approved in writing by both parties.

Notwithstanding the foregoing, the MPO Master Agreement (Contract #6111) is hereby incorporated into and made a part of this Agreement. This Agreement and the parties thereto shall be subject to the terms of the MPO Master Agreement, and in the event that the terms of the MPO Master Agreement conflicts with the terms of this Agreement, the terms of the MPO Master Agreement shall control.

IN WITNESS WHEREOF, the parties have hereunto set their hands and seals the day and year first above written.

**[REMAINDER OF PAGE INTENTIONALLY LEFT BLANK:
SIGNATURE PAGES FOLLOWS]**

Cheyenne Metropolitan Planning Organization

2101 O'Neil Avenue
Cheyenne, WY 82001

By: _____
Marian J. Orr, Mayor
MPO Policy Committee Chairman

Date: _____

(SEAL)

Attest:

Carol Intlekofer, City Clerk

CITY OF CHEYENNE

By: _____
Marian J. Orr, Mayor

Date: _____

Consultant

AVI p.c.
1105 Old Town Lane, Suite 101
Cheyenne, WY 82009

By: _____

Print Name: _____

Address: _____

Date: _____

AVI, P.C. SCOPE OF WORK FOR PARSLEY ROAD CORRIDOR PLAN

General Conditions

It is understood that the Cheyenne Metropolitan Planning Organization (MPO), Laramie County (County), and City of Cheyenne (City) will provide the existing mapping data, reports and project information where needed. AVI, P.C. will use existing data to the greatest extent possible. AVI, P.C. will prepare graphics and maps that may be needed to illustrate the recommendations, alignments, and improvements proposed. It is understood that AVI, P.C. will be responsible for preparing the final recommendations in a map and report format.

AVI, P.C. has engaged Kimley Horn (K-H) as sub-consultants to assist in the development of the plan. AVI, P.C. assumes responsibility for the sub-consultants.

Other Items

Administration of change orders, contract modifications, and payment extras are not included as part of the basic compensation for this project and will not be included in the detailed fee estimate. It is understood that changes in our staff or fee structure will be presented in writing to the MPO and City for approval prior to initiating any changes or performing any work.

Additional Required Services

If the MPO requests extra professional services beyond this scope, an amended written Scope of Services and fee adjustment will be negotiated prior to any extra work commencing.

Task RE: Reimbursable Expenses

AVI, P.C. has included reimbursable expenses as part of the lump sum fees shown in our Exhibit C, Summary of Fees. AVI, P.C. estimated the amount of reimbursable expenses such as printing costs are outlined below:

- Final Conceptual Design Plans and Report (10 copies)
- Mileage
- Exhibits for Public Meeting and One –on-one Meeting(s)
- Underground Utility Locate Services
- Electronic Variable Message Board (Public Meeting).

It is assumed that the Draft Plan and Final plan copies will be color up to an 11 x 17 inches maximum paper size. Additionally, it is understood the preferred size of the planning document is 8-1/2 x 11 inches with a few maps 11 x 17 inches.

AVI, P.C. SCOPE OF WORK FOR PARSLEY ROAD CORRIDOR PLAN

Furthermore, it is assumed that intermediate review documents and exhibits for meetings and public outreach will be provided to the MPO by AVI, P.C. in electronic PDF format. Any intermediate paper documents or handouts required will be provided by the MPO.

Phase PE – Preliminary Engineering

Task 1 – Review/ obtain existing information.

AVI, P.C. will obtain the available existing topography, right-of-way, utility, aerial photography, and water and sewer system maps from the MPO. The MPO office shall provide most current traffic counts, turning movements, future traffic projections, aerial photography, GIS layers reflecting zoning, land use, topography, water and sewer, crash data, storm sewer system, transit routes, and flood area layers. Additionally, Plans, reports, or data that are relevant to this study to be reviewed include:

- PlanCheyenne 2014, Cheyenne MPO
- Street Network Master Plan - South Cheyenne Streets, A.V.I. p.c., May 20, 2004 Cheyenne
- MPO
- Cheyenne Metropolitan Area Pedestrian Plan and Safe Routes to School Plan
- Cheyenne On Street Bicycle Plan
- City of Cheyenne Unified Development Code.

Task 2 – Field Survey

AVI, P.C. will establish local project survey control and complete a field survey of surface utility features and surface located underground utilities within the corridor.

The horizontal control will be tied to the NAD 83 State Plane Coordinate (per the City of Cheyenne control system) and the vertical will be tied to the City's ground control system. In order to establish a fee, field survey services will be limited to one (1) trip and/or eight (4) total hours of a (2) man survey crew time for this task.

No boundary or easement survey work will be included in the scope of this project. Any boundary work required by the MPO will need to be added to this scope as outlined in additional services.

AVI, P.C. SCOPE OF WORK FOR PARSLEY ROAD CORRIDOR PLAN

Task 3 – Professional Traffic Engineering Services (Task Kimley Horn, Sub-consultant to AVI, P.C.)

Kimley Horn (K-H) will prepare a transportation impact study based on the following work scope.

- **Traffic Analysis.** The Kimley-Horn team will evaluate traffic safety, transportation needs, and provide recommendations for managing or reducing congestion, managing or mitigating vehicular traffic, and promoting a multi-modal transportation approach along the Parsley Boulevard corridor between Ames Avenue and Wallick Road. The following intersections will be evaluated as part of this task:
 - o Ames Avenue
 - o Pacific Avenue
 - o 4th Street
 - o 3rd Street
 - o Jefferson Road
 - o Sundance Lane
 - o Pinto Lane
 - o Jazz Drive
 - o Musical Drive
 - o College Drive
 - o Wallick Road.
- **Traffic Count Data.** Existing weekday morning and afternoon peak hour vehicle, bicycle, and pedestrian traffic volume counts will be obtained from the Cheyenne MPO as available and/or conducted at the 10 intersections identified. These existing traffic volumes will be evaluated to determine operational level of service for existing conditions. Intersection and roadway improvements will be recommended based on existing traffic volumes.
- **Future Traffic Conditions.** Future traffic projections will be obtained from the Cheyenne MPO and identified based on the proposed development plan for the area. This traffic will be assigned to the street network and intersections. A 20-25 year horizon traffic analysis will be conducted for these future traffic volume forecasts to determine possible capacity needs and level of service criteria requirements. Roadway and intersection improvements (possible traffic signals or roundabouts) will be identified for these ten intersections and the overall

AVI, P.C. SCOPE OF WORK FOR PARSLEY ROAD CORRIDOR PLAN

Parsley Boulevard corridor. In addition, driveway access realignments or turning movement restrictions will be proposed and recommended. The study will include an evaluation of the previous two proposed Parsley Boulevard alignments at the intersection with College Drive as identified in the 2004 South Cheyenne Street 10% Design Plan. As identified, traffic signal warrants will also be evaluated at this intersection.

- **Draft and Final Report.** A draft report will be prepared to document the analysis performed in the study. The report will be provided to AVI for inclusion in the project report. Comments received on the draft report will be incorporated into the final report.
- **Cost Estimate.** K-H shall only provide cost estimate assistance for traffic signal installations, if required.
- **Meetings.** Kimley-Horn will attend two (2) steering committee meetings and (1) Public Meeting. One (1) meeting will be attended in person and the other meetings via conference call. Additionally, (2) two one hour conference calls are also included in this task.

Phase – RD Roadway Design and Cost Estimates

Task 1 – Concept Plans

Primary Intersections. Working with the MPO, Steering Committee, stakeholders, and design team, AVI, P.C. will prepare conceptual plan(s) for the development of Parsley Blvd and the three main intersections (Ames Avenue, College Drive, and Wallick Road). AVI, P.C. anticipates that a total of up to three (3) concept intersection layouts will be developed for the three roadway intersection listed above for the purpose of discussion and design development.

Other Intersections. Similarly, AVI, P.C. anticipates that other local intersections and access concepts along with recommended design standards will be developed during the concept plan development.

Task 2 – Develop Recommended Typical Sections

Working with the MPO, Steering Committee, stakeholders, and design team, AVI, P.C. will prepare conceptual typical roadway sections for the development of Parsley Boulevard Corridor Plan.

AVI, P.C. SCOPE OF WORK FOR PARSLEY ROAD CORRIDOR PLAN

Task 3 – Drainage Evaluation

As a part of the planning document, AVI, P.C. will evaluate the drainage basins contributory to the study area of the corridor (i.e. Parsley Boulevard from Ames Avenue to College Drive and College Drive to Wallick Road). This task will be limited to the following:

1. Identification of the major tributary basin areas within the Parsley Boulevard Corridor from Ames Avenue to Wallick Road. Basin areas will be developed using electronic contours (Compatible with AutoCAD 2015 or Microstation V8) furnished by the MPO.
2. Engineering capacity design calculations will be provided for proposed drainage conveyance elements identified with the 35% plans using the initial and major storm runoffs. No analyses of any offsite culverts, storm drains, or subdivision drainage conveyance elements have been included in this scope of services.
3. Develop a conceptual drainage master plan limited to contributory basins which impact the Parsley Boulevard Corridor from Ames Avenue to Wallick Road including potential locations for regional detention facilities will be developed.
4. Recommendations for short and long term storm water mitigation measures will be developed and summarized in the final report.

Task 4 – 35% Improvement Plans (Ames Avenue to College Drive)

AVI will prepare a preliminary set of 35% level design documents on 11" x 17" format. The following sheets are anticipated:

- Cover Sheet
- Plan and Profile Sheets
- Recommended Typical Section
- Cross Sections
- Recommended Intersection Layouts.

Task 5 – 10% Improvement Plans (College Drive to Wallick Road)

AVI will prepare a preliminary set of 10% level design documents on 11" x 17" format. The following sheets are anticipated:

- Cover Sheet
- Plan and Profile Sheets

EXHIBIT A

AVI, P.C. SCOPE OF WORK FOR PARSLEY ROAD CORRIDOR PLAN

- Recommended Typical Section
- Cross Sections.

Task 6 – Cost Estimates

AVI, P.C., will develop a preliminary cost estimate from the 10% Design and Conceptual Plans and 35% Improvement Plans developed in Task 4 and Task 5 above. This cost estimates will be prepared and tabulated based on the latest available cost data information from the Wyoming Department of Transportation and AVI, P.C. cost data. Please note that the estimates will be based on Present Worth or Present Value Dollars and adjustments should be made for years beyond the present year for future budget needs.

Phase PI – Public Process and Involvement Engagement

Task 1 – Steering Committee Meetings

AVI, P.C. will coordinate and conduct up to (three) three meetings with a Project Steering Committee comprised of staff and key stakeholders from the MPO/City/County/WYDOT and other agencies to create a conceptual design for the corridor that addresses the desired outcomes from the Plan.

Task 2 – One on One Meetings

AVI, P.C. will schedule “One-on one” with key stakeholders and/ or landowners. This may include a small group meeting, presentation, phone calls, or actual one-on one meeting time.

The purpose of this task is to discuss concerns and solicit input on the future roadway development and/ or any other pertinent information during the planning process for the roadway corridor. This contract includes up to (4) four formal in person “One on One” meetings.

Task 3 – Social Media

In an effort to increase participation in the public involvement process, AVI, P.C. will assist and coordinate with the MPO in the following type of social media planning tool components:

- MPO Web Posts
- Project Blog
- Email Blast Notifications.

EXHIBIT A

AVI, P.C. SCOPE OF WORK FOR PARSLEY ROAD CORRIDOR PLAN

Task 4 – Formal Open House

AVI, P.C. will identify and conduct outreach and education activities with important stakeholders such as adjacent property owners, impacted agencies and developers. Specifically, AVI, P.C. will develop and conduct (2) public meetings for the project.

Task 5 – Jurisdictional Meetings

AVI, P.C. will attend and conduct a presentation to update progress and status of the project at up to four (4) Jurisdictional Meetings during the life of the project. This task anticipates the following committee meetings:

- Laramie County Planning Commission (1)
- City of Cheyenne Planning Commission (1)
- Laramie County Commissioners Meeting (1)
- City of Cheyenne Governing Body (1)

Task 6 - MPO Committee Meetings

AVI, P.C. will attend and conduct a presentation to update progress and status of the project at up to four (4) MPO Committee Meetings during the life of the project. This task anticipates the following jurisdictional meetings:

- MPO Citizen Advisory Committee (1)
- MPO Technical Committee (2)
- MPO Policy Committee (1).

Task REPRT – Corridor Report

Task 1 – Draft Document

AVI, P.C., will provide a report to document the study process, analyses, assumptions, conceptual alternatives, and recommended plan, and cost estimates.

It is anticipated that the report will consist of documentation of meetings with the Steering Committee and other agencies, the public process, infrastructure recommendations including roadway, and drainage mitigation. The plan shall include technical data, graphs, maps, and cite all reference materials. The report will include the following sections:

- Introduction and Approach
- Review of Existing Information

EXHIBIT A

AVI, P.C. SCOPE OF WORK FOR PARSLEY ROAD CORRIDOR PLAN

- Project Meetings
- Alternative Analysis
- Recommended Design Elements
- Preliminary 10% and 35% Improvement Plans and Cost Estimates

AVI will submit an electronic PDF of the DRAFT plan and report for review, comment, and distribution by the MPO.

Task 2 – Final Report

After receipt of the final review comments from the MPO and Steering Committee, AVI, P.C. will prepare a final report for the project and incorporate required changes. AVI, P.C. will submit an electronic PDF file and ten (10) copies of the Final Conceptual Design Plan including the adopting resolutions.

Clarification of Services

Deliverables. The consultant understands that specific deliverables are expected to include (but may not be limited to) the following:

1. Advertisement design and electronic copies for public participation efforts that may possibly include postcards, newspaper advertisements, and social media, among others.
2. Displays for staff, steering and/or public meetings including maps, boards, handouts, surveys and sign-in sheets. These will be available as electronic copies to the MPO to review several days prior to meetings and summaries of surveys promptly upon completion.
3. Summary of all public meetings and steering committee meetings will be produced within a week of the event.
4. Power Point presentations given to ALL meetings, and a text summary of all meetings for the MPO website.
5. Thirty five percent (preliminary) plan and profiles for the roadway, needed rights of way, utilities and drainage considerations of Parsley Blvd. from Ames Ave. to College Drive and a 10% evaluation and plans for Parsley Alignment South of College Drive to Wallick Road as per PlanCheyenne, Master Transportation Plan.

EXHIBIT A

AVI, P.C. SCOPE OF WORK FOR PARSLEY ROAD CORRIDOR PLAN

6. Cost estimates for preliminary construction, Rights of Way acquisitions and drainage improvements (if necessary) for the project.
7. Documentation of progress shall be included with every invoice.
8. Electronic copies of all documents, images, photos, draft plans and final plans.

Phased Completion. The AVI team proposes that the corridor study be completed in (2) phases to ensure accurate, complete, and timeliness of the Parsley Blvd. Corridor Plan and meet the needs and future schedule of the WYDOT bridge replacement project. The first phase would be comprised of the 35% Improvement Plans including the roadway plan, profile, roadway typical section(s), and cross sections for the I-80 Bridge Replacement Project and the second phase would be the Parsley Boulevard Corridor Study completion.

Exhibit B - Schedule

A proposed detailed schedule for the completion of the Parsley Road Corridor Plan is provided on the following page. AVI has prepared this schedule based on the tasks described under the Scope of Work.

Date	Key Scheduled Milestone
May, 2018	Notice to Proceed Issued by the City of Cheyenne
May, 2018	Kickoff Meeting
June, 2018	Steering Committee Meeting No. 1
June, 2018	Public Meeting No. 1
September, 2018	Steering Committee Meeting No. 2
November, 2018	Public Meeting No. 2
December, 2018	Steering Committee Meeting No. 3
February, 2019	Submit Draft to CMPO and Steering Committee
April, 2019	Submit to CMPO for Final Acceptance
TBD	CMPO Committee Meetings (TAC, Policy)
September, 2019	Final Acceptance of 10% and 35% Corridor Plan

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Exhibit B – Tentative Detailed Schedule

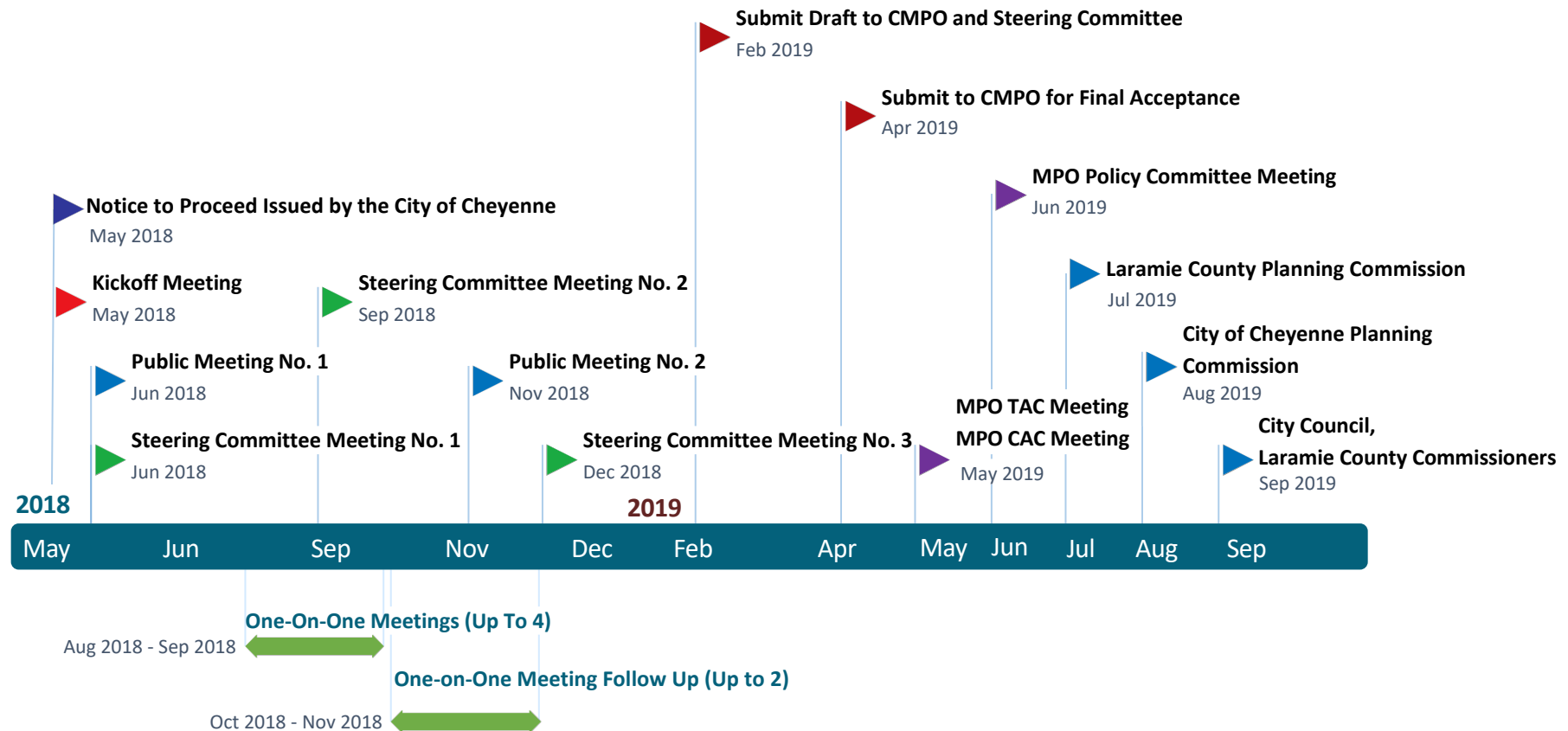


Exhibit C - Fee Schedule

FEE SCHEDULE FOR PARSELY BLVD. CORRIDOR PLAN

April 11, 2018

Task	Description	Cost Not To Exceed
Phase RE	Reimbursable Expenses	
	Reimbursable Expenses	\$ 3,500.00
Phase PE	Preliminary Planning	
	Task 1 Review/ obtain existing data and available information	\$ 1,544.00
	Task 2 Field Survey (Utilities)	\$ 1,304.00
	Task 3 Professional Traffic Engineering Services (Sub: KM-H)* See Phase SUB	\$ -
	Sub-total Phase PE	\$ 2,848.00
Phase RD	Roadway Design and Cost Estimates	
	Task 1 Concept Plans	\$ 2,070.00
	Task 2 Develop Recommended Typical Sections	\$ 964.00
	Task 3 Drainage Evaluation	\$ 2,414.00
	Task 4 35% Improvement Plans (Ames Avenue to College Drive)	\$ 10,730.00
	Task 5 10% Improvement Plans (College Drive to Wallick Road)	\$ 3,736.00
	Task 6 Cost Estimate	\$ 3,180.00
	Sub-total Phase RD	\$ 23,094.00
Phase PI	Public Process and Involvement Engagement	
	Task 1 Steering Committee (3)	\$ 1,824.00
	Task 2 One-on-one Meetings (Up to 4)	\$ 1,544.00
	Task 3 Social Media	\$ 931.00
	Task 4 Public Meeting (2)	\$ 11,356.00
	Task 5 Jurisdictional Meetings (4)	\$ -
	Laramie County Planning Commission (1)	\$ 1,930.00
	City of Cheyenne Planning Commission (1)	\$ 222.00
	Laramie County Commissioners Meeting (1)	\$ 222.00
	City of Cheyenne City Council (1)	\$ 333.00
	Task 6 MPO Committee Meetings (4)	\$ -
	MPO Citizen Advisory Committee Meeting (1)	\$ 222.00
	MPO Technical Committee Meetings (Up to 2)	\$ 444.00
	MPO Policy Committee (1)	\$ 222.00
	Sub-total Phase PI	\$ 19,250.00
Phase Reprt	Corridor Report	
	Task 1 Draft Document	\$ 6,560.00
	Task 2 Final Report	\$ 1,312.00
	Sub-total Task REPR	\$ 7,872.00
Phase SUB	Sub-consultants	
	KM-H Phase PE, Task 3: Professional Traffic Engineering Services	\$ 21,855.00
	Sub-total Task SUBS	\$ 21,855.00
	BASE PROJECT TOTAL	\$ 78,419.00